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Motion to Bifurcate

Atakan Akoglu v. Universal Music Group, Inc., et al.

Moving Party: Defendants UMG Recordings, Inc. ("UMG") and DEF JAM RECORDINGS ("DEFJAM")

Responding Party: Plaintiff Atakan Akoglu

Tentative Ruling: Grant

Code of Civil Procedure section 1048 provides, "The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial ... of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States." (Code Civ. Proc. § 1048, subd. (b).)

"The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order . . . that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case." (Code Civ. Proc. § 598.) "The authority of the court to bifurcate a trial of the issues in a case is conferred and limited by the provisions of" section 598. (Cohn v. Bugas (1974) 42 Cal.App.3d 381, 386.)

As explained by the Court of Appeal in *Trickey v. Superior Court In and For Sacramento County* (1967) 252 Cal.App.2d 650, "Code of Civil Procedure section 598 was adopted in 1963 as the result of Judicial Council recommendations. Its objective is avoidance of the waste of time and money caused by the unnecessary trial of damage questions in cases where the liability issue is resolved against the plaintiff." (*Trickey*, supra, 252 Cal.App.2d at p. 653.)

Here, Plaintiff contends that UMG is liable under an employment/agency theory and that DEFJAM is liable under a negligent entrustment theory. The Court finds that the facts relating to these theories are fully distinct from all other facts in the case, these issues will require substantially less time to present to a jury, and that any potential prejudice is significantly outweighed by the significant waste of time and money related to a trial of all remaining issues should liability be resolved against the Plaintiff.

RULING

The Motion to Bifurcate brought by Defendants UMG Recordings, Inc. and DEF JAM RECORDINGS is granted. The first phase of the trial will be limited to the agency/employment and negligent entrustment claims against the defendants. The second phase, if necessary, will be tried before a separate jury at a date to be determined.